

Saint Kitts and Nevis 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Saint Kitts and Nevis during the year.

There were no credible reports of significant human rights abuses.

The government took credible steps to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. An independent media, an effective judiciary, and a functioning democratic political system combined to promote freedom of expression, including for media members.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the right to form and join independent unions and the right to collective bargaining. The government generally respected the law. A union representing more than 50 percent of employees at a company could apply for the company to recognize the union for collective bargaining. Companies generally recognized the establishment of a union if a majority of its workers voted in favor of organizing the union, but the companies were not legally obliged to do so.

The law provided for the right to strike and prohibited antiunion discrimination. Penalties for violations of freedom of association, collective bargaining, and the right to strike were commensurate with those for

analogous violations such as civil rights violations. The government reported there were no violations during the year resulting in arrests, prosecutions, or penalties. The Ministry of Labour provided employers with training on their rights and responsibilities. The International Labor Organization provided technical assistance to the government in conflict mediation and grievance handling.

Forced or Compulsory Labor

The law prohibited and criminalized all forms of forced or compulsory labor, the government effectively enforced the law, and penalties were commensurate with those for analogous crimes, such as kidnapping. There were reports from government, nongovernmental organizations (NGOs), and private citizens that employers of foreign nationals occasionally withheld the passports of their foreign national employees, particularly among Chinese and Indian nationals. The government reported investigating one employer during the year who kept possession of the employees' passports, allegedly for safekeeping.

Acceptable Work Conditions

Wage and Hour Laws

The national minimum wage for all sectors of the economy was above the estimated poverty income level. The government estimated approximately 15 percent of the workforce earned the minimum wage. The law provided

for a 40-hour workweek. The law did not prohibit excessive or compulsory overtime, but government policy called for employers to inform employees if they had to work overtime. Although not required by law, workers generally received at least one 24-hour rest period per week.

Occupational Safety and Health

The government set occupational safety and health (OSH) standards that were outdated but appropriate for the country's main industries. Workers could remove themselves from situations that endangered health or safety without jeopardy to their employment, and authorities effectively protected the jobs of employees in this situation. The law also required employers to report accidents and dangerous incidents. Government officials and NGOs reported mold in government buildings was occasionally a health hazard, and the government temporarily closed some buildings to address mold infestations. The government worked to proactively identify unsafe conditions by conducting regular workspace inspections.

Wage, Hour, and OSH Enforcement

The government effectively enforced minimum wage, overtime, and OSH laws, and penalties were commensurate with those for similar crimes, such as fraud. Violators were subject to fines, and repeat offenders were subject to prosecution. The government reported there were no violations during the year resulting in arrests, prosecutions, or penalties.

The Labor Commission settled disputes concerning OSH conditions. The labor commissioner in the Ministry of Labour conducted regular workplace inspections, and there was a sufficient number of labor inspectors to enforce compliance. Government agents conducted 95 OSH inspections between January and August. Labor inspectors had the authority to make unannounced inspections and make recommendations. Labor inspectors had authority to issue penalties in some instances and would otherwise coordinate with the appropriate government body to initiate sanctions. The commission undertook wage inspections and special investigations when it received complaints.

The government estimated 10 to 15 percent of the workforce was in the informal sector. The government conducted limited enforcement of labor laws in this sector.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The constitution prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or

detention in court. The government generally observed these requirements.

Authorities remanded persons accused of serious offenses to custody to await trial. Authorities released persons accused of minor infractions on their own recognizance or on bail with sureties. One detainee at His Majesty's Prison, deemed to be dangerous to society due to a mental health condition, was held by court order.

Lengthy pretrial detention continued to be an issue, exacerbated by the high volume of cases and limited capacity of magistrate judges. As of August, one person in His Majesty's Prison had been awaiting trial for two years.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

There were no confirmed reports during the year that traffickers exploited domestic or foreign victims in the country or that traffickers exploited nationals as victims abroad.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution prohibited such practices, and there were no credible reports government officials employed them.

b. Protection of Children

Child Labor

The law prohibited the worst forms of child labor, and a Special Victims Unit, led by the Child Protection Services and police, investigated violations. The law set the minimum age for work at 16. Prohibitions did not apply to family businesses. Children ages 16 to 18 had the same legal protections from dangerous work conditions as all workers. The law permitted children ages 16-18 to work regular hours. Employment of children ages 16-18 in certain industries related to the hotel and entertainment sectors was restricted. The government effectively enforced the applicable laws, and penalties were commensurate with those for analogous crimes. The government reported there were no violations during the year resulting in arrests, prosecutions, or penalties. Most children younger than age 16 with jobs worked after school in shops and supermarkets or did light work in the

informal sector.

The Ministry of Labour relied on routine inspections, school truancy officers, and the Community Affairs Division to monitor compliance with child labor laws, which they did effectively.

Child Marriage

The legal minimum age for marriage was 18 for both men and women. The government enforced the law effectively.

c. Protection to Refugees

The government coordinated with the Office of the UN High Commissioner for Refugees in providing protection and assistance to refugees, asylum seekers, and other persons of concern.

Provision of First Asylum

The law provided for the granting of asylum or refugee status, but the government did not have a system for providing protection to refugees.

d. Acts of Antisemitism and Antisemitic Incitement

There was no organized Jewish community, and there were no reports of antisemitic incidents.